

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olubukola Ajayi	Team: Team # 4	CCRB Case #: 201403006	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/28/2014 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/28/2015	Precinct: 41		
Date/Time CV Reported Mon, 03/31/2014 10:29 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/31/2014 10:29 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Darrin Smalls	06761	937552	041 PCT
2. POM Scott Berger	10210	948659	041 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ahsan Zafar	03773	949822	041 PCT
2. POM Emmanuel Camilo	02464	944253	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer searched the car in which § 87(2)(b) was an occupant.	A . Complainant Uncooperative
B . POM Darrin Smalls	Abuse: PO Darrin Smalls searched the car in which § 87(2)(b) was an occupant.	B . Complainant Uncooperative
C . POM Scott Berger	Abuse: PO Scott Berger searched the car in which § 87(2)(b) was an occupant.	C . Complainant Uncooperative
D . An officer	Abuse: An officer searched § 87(2)(b)	D . Complainant Uncooperative

Case Summary

This case was returned from the CCRB Mediation Unit to the Intake Unit on May 30, 2014, and was assigned to Team 4 on June 12, 2014 because one of the subject officers could not be identified without a photo viewing. On June 17, 2014, § 87(2)(b) was called and informed that he would need to appear at the CCRB for an in-person interview and photo viewing. § 87(2)(b) scheduled an appointment for June 24, 2014. On June 24, 2014, § 87(2)(b) did not appear for his scheduled appointment and he did not call to cancel or reschedule his interview. On the same date, a voice message was left for § 87(2)(b) requesting a call back and a missed appointment letter was mailed to him. On July 1, 2014, and on July 2, 2014, § 87(2)(b) was called and each time a voice message was left. On July 2, 2014, a final please call letter was mailed to § 87(2)(b). None of the letters that were mailed to § 87(2)(b) were returned to the CCRB as undeliverable by the United States Postal Services (USPS). On July 3, 2014, § 87(2)(b) was called and a voice message was left. On August 4, 2014, a search conducted on the NYC Department of Correction's website and on the NYS Department of Correction's website for § 87(2)(b) indicated that § 87(2)(b) was not incarcerated.

§ 87(2)(g)

Therefore, it is recommended that the allegations in this case be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date